

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN VANUATU

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action shapes what happens to land, sea, and future in Vanuatu, and this small island nation has shown the world a distinctive way to fight — on two levels at once. The first is close to home and built into the country's foundations: in Vanuatu, the land belongs to the custom owners, protected by the Constitution, and generally cannot be sold, only used with the consent of those whose ancestral ground it is. A community that knows and holds its customary rights, governed by its chiefs and its kastom, has a defence against dispossession that communities in many countries can only dream of. The second level is one Vanuatu carried all the way to the highest court on Earth. When the threats grew too large for any one island — the rising seas, the warming that could drown the country itself — a group of law students in Port Vila refused to accept that nothing could be done, and their idea, taken up by the government, became a global campaign. In **July 2025**, the **International Court of Justice** delivered a historic opinion, spearheaded by Vanuatu, confirming that states have binding legal duties to act on climate change. A nation of a few hundred thousand people had made the world's court speak. The story of how deserves telling, because it is a lesson in itself. The idea did not begin in a government office but in a classroom at the University of the South Pacific, where a group of law students, refusing to accept that their islands might simply be surrendered to the rising sea, conceived the notion of asking the world's highest court to clarify what the law required of states on climate. Their government took the idea up, built a coalition that grew to well over a hundred co-sponsoring countries at the United Nations, and carried it through years of proceedings that drew the broadest participation in the Court's history. When the opinion came in July 2025, all fifteen judges agreed: states have real legal duties to act on climate, owed under the treaties and under customary international law. A handful of students and a small government had reframed the fate of the Earth as a question of law.

The Vanuatu story teaches two things about defending land and future here — including its honest limits, which this guide states from the outset. The first is the pattern that runs through every guide: not a single silver bullet, but the combination of every lever — the community, the custom owners and chiefs, the documentation, the coalition, the law, and the world's attention — pressed together. The second is distinctly ni-Vanuatu, and it operates on the two levels the country has mastered. **From below, customary land rights and the authority of the chiefs protect the ground itself against being taken or destroyed; from above, a small nation's leadership in international law and diplomacy confronts the threats too big for any one community to stop alone** — the climate that endangers everyone, the deep-sea mining that would tear the ocean floor. That two-level defence — the strong customary foundation and the reach into the world's institutions — is Vanuatu's distinctive contribution, and this guide is built around both. It is worth grasping why these two levels belong together rather than apart. The customary foundation protects the specific ground a community stands on — its gardens, its reef, its sacred places — against the lease and the bulldozer, giving it a power close to home that few peoples enjoy. But no customary right, however strong, can hold back a sea driven higher by emissions from the other side of the world, or by itself halt a scramble to mine the deep ocean floor; those threats can only be met by reaching outward, into national policy, regional solidarity, and the world's institutions. A ni-Vanuatu community that understands both levels knows when to hold its ground with custom and when to lift its cause to the world.

But the same story carries honest warnings, and this guide will not hide them. The ICJ opinion is **advisory, not binding** — it clarifies the law and carries great authority, but it does not by itself force any government to act or stop any single project. This distinction matters and should not be glossed over: an advisory opinion is not a verdict against a named polluter that a bailiff can enforce, but an authoritative statement of what the law requires, which then has to be turned into action through national courts, diplomacy, and political pressure. Its power is real but indirect — it shapes how other courts rule, how negotiators bargain, and how the public judges its leaders — and a community should value it for what it is, a powerful tool for the long struggle, rather than mistake it for an immediate remedy. The **seas keep rising** whatever a court says, and the great emitters are far away. Customary land is protected in principle, but in practice it can still be **alienated through long leases**, and dispossession does happen. And Vanuatu is **small and poor**, its power moral, legal, and diplomatic rather than coercive. This guide is written with both truths in view: the real, distinctive power of a community anchored in customary rights and of a nation that can move the world's institutions — and the advisory limits, the alienation of land, and the sheer scale of the threats that qualify it.

Most communities do not know HOW to make these levers effective. They may hold customary land without knowing the strength of their rights; they may face a lease or a project and assume "the government or the company has decided and nothing can be done"; they may never document, never invoke their custom authority, never reach the courts or the wider

world. They generate private loss without a public claim. The gap between a community that holds its ground and one that loses it is rarely courage — ni-Vanuatu have defended their islands and led the world with courage. It is method: knowing the strength of customary rights, the authority of the chiefs, and the reach of the law and the world's institutions, and using them together.

This guide shows what actually works — inside the ni-Vanuatu system as it is.

The Strategic Framework

Effective campaigns follow the same underlying pattern, whether the goal is to stop a project on customary land, resist a destructive development, or confront a threat too large for one community:

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STEP 1: TARGET IDENTIFICATION (find the decision, the rights, and the leverage)
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STEP 2: DOCUMENTATION (build proof of the harm and the customary right)
|
STEP 3: LOCAL OPPOSITION (organise the community, the custom owners, and the chiefs)
|
STEP 4: LEGAL CHALLENGES (customary rights, the courts, and international law)
|
STEP 5: MEDIA STRATEGY (make it national, regional, and global)
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These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the public argument at once; the custom owners and chiefs anchor the opposition; a legal claim or an international appeal is a headline and a headline builds the coalition. The community that runs all five together, each reinforcing the others, is the one that prevails — a project stopped on its land, or a great threat confronted in the world's institutions. Vanuatu did exactly this on the world stage — a community of students and a government documented the harm, built a global coalition, and carried the law to the highest court.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Vanuatu's give communities a distinctive set:

- **Customary land rights.** The land belongs to the **custom owners**, protected by the Constitution and generally inalienable — a powerful defence against a project imposed without consent. The strength of this arrangement is hard to overstate for anyone used to systems where land is simply bought and sold: in Vanuatu, the ground belongs to the custom owners and their descendants, and while it can be leased, the underlying ownership generally cannot be extinguished, so a community does not have to prevent a sale that has already happened but only to withhold or challenge a consent. That shifts the whole balance of a land fight in the community's favour, because the default is that the land stays with its custom owners unless they genuinely agree otherwise.
- **The authority of the chiefs and kastom.** The **chiefs and custom governance**, and the National Council of Chiefs, carry a legitimacy and authority the state and companies must reckon with.
- **Consent.** Because customary land cannot simply be taken, the community's **consent** is a real gate a project must pass — a source of leverage.
- **Leadership in international law.** Vanuatu has shown that a small nation can **move the world's institutions** — the ICJ, the law of the sea — to confront threats too big for one community. This is a genuinely novel lever in the repertoire of environmental defence, and Vanuatu did not stop at the ICJ: the same Pacific leadership helped bring a question on states' ocean and climate duties before the international tribunal for the law of the sea, which delivered its own opinion, and it has pressed in international forums for restraint on deep-sea mining. The lesson is that a small and vulnerable state, by acting first and acting with its region, can help set the standards by which the whole world will be judged — a form of power that has nothing to do with size or wealth.
- **Regional and indigenous solidarity.** Acting with **other Pacific nations** and grounded in **indigenous jurisprudence** — the inseparability of land, ocean, and culture — multiplies a community's reach.

What This Guide Will Not Pretend

It would be dishonest to promise these levers stop every threat. The ICJ opinion is **authoritative but not binding**, and the seas rise regardless. Customary land can be **alienated by lease** despite its protection. And a small nation's power is **moral and legal, not coercive**. This guide takes those limits seriously, names them plainly, and shows you how to fight anyway — holding the customary ground, invoking the chiefs, and reaching, as Vanuatu reached, into the law and the world's institutions.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single week, map who actually decides your project's or your threat's fate, at which level, and where along that path the decision — or the leverage — is weakest.

The Levels of Decision

A ni-Vanuatu land or environmental question runs through several tracks at once, and each is a place to intervene.

The custom owners and the chiefs. The **custom owners** hold the land, and the **chiefs and kastom** govern its use. Because land is customary and largely inalienable, this level is the first and often strongest gate — a project needs consent.

The government and the leases. The **government** grants leases, permits, and licences, and administers development. A lease is how customary land is most often opened to a project, so this is a critical level to watch. This is the hinge of most land disputes in Vanuatu, and it is worth watching closely from the very start, because it is at the moment of leasing that customary protection is most often circumvented — a lease signed by someone presented as the owner, a consent recorded without the true owners' knowledge, a term of ninety-nine years that alienates the land in all but name. A community that keeps watch on how land in its area is being leased, and that acts early when a questionable lease appears, is guarding the very point at which its rights are most vulnerable.

The companies. Developers, loggers, miners, and others, foreign and domestic, operate the projects and depend on leases and consent.

The courts. Vanuatu's **courts**, including those that weigh custom, can review leases and defend rights — a real lever.

The international level. For the largest threats, the **international institutions** — the ICJ, the law of the sea, the climate framework — are a level Vanuatu has shown a community and a nation can reach.

The Journey of a Project

A typical project moves from an approach to the **custom owners** and a **lease** granted by the government, through the **company** that builds it, toward development — with the **custom owners, the chiefs, the courts, and, for great threats, the world's institutions** able to withhold consent, document, and litigate at any point. **Every one of those stages is a door you can put your foot in.** The distinctive ni-Vanuatu doors are the **consent of the custom owners and chiefs**, which a project cannot easily bypass, and, for the largest threats, the **international institutions** Vanuatu has learned to move. Find out exactly where your project or threat stands, and, crucially, **whether the custom owners truly consented** and **whether the lease is sound**, because those are often where a project can be stopped.

Follow the Land, the Lease, and the Consent

Behind a project stand a proponent — a company, the government, or both — and the officials who approved it. Trace who profits, who decided, and — critically in Vanuatu — **who the true custom owners are, whether they genuinely consented, whether the lease is valid, and what the project does to the land, the reef, and the community.**

Two questions unlock most ni-Vanuatu fights: **Did the true custom owners freely consent, and is the lease sound?** and **For a threat too big for one community, can the courts and the world's institutions be reached?** The consent and the lease are, together, the heart of most local fights; the international reach is the heart of the largest ones. Keeping the two scales distinct is itself useful, because the tools differ: a project on your customary land is fought and often won close to home, with the true ownership, the withheld consent, the chiefs, and the courts; a threat like climate change or deep-sea mining, whose causes lie far beyond any village, is met by joining your voice to a national and regional effort that reaches the world's institutions. A community should diagnose early which kind of fight it is in, because pouring the energy for one into the other wastes both.

The Overseers

Finally, know the bodies and forces that can check the deciders, because they are levers too. The **chiefs and the National Council of Chiefs**, whose authority anchors custom; the **courts**, including those weighing custom; the **international institutions** Vanuatu has moved; **civil society and the churches**; the **regional Pacific bodies and neighbours**; and the **world's attention**, which a small nation's leadership can command. In Vanuatu, the **custom owners and chiefs** are the most decisive lever for a project on the ground, and the **international institutions** for a threat beyond one community. Each is a separate front, and a project that lacks true consent, that rests on an unsound lease, and that harms the land rarely survives the custom owners, the chiefs, and the courts together. You do not have to choose one front: the same clear account of true ownership and withheld consent can go to the chiefs, the courts, the government, and the press at once, and each front that opens strengthens the others. A ni-Vanuatu campaign's power

comes not from any single lever but from pressing several together — the custom owners and chiefs establishing the right, the courts overturning the false lease, and, for the greatest threats, the international institutions setting the standard — so that the ground is defended from below and, where necessary, the world engaged from above.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how ni-Vanuatu and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the **custom owners genuinely withheld or can withdraw consent**, whether the **lease is unsound**, whether the **chiefs and community are united**, whether the **courts** can be reached, and, for the largest threats, whether **international institutions and regional solidarity** can be enlisted. Where the custom owners are united and the consent or lease is in question, Vanuatu's customary-rights levers are strong; for a threat like climate change, the honest truth is that even a historic legal win is a step, not a stop.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	weeks-months	low	Basis for every other step
Withholding custom-owner consent	40-65%	varies	low	A project blocked at the gate
Challenging an unsound lease	30-55%	1-4 years	low-moderate	A lease overturned; land recovered
Chiefs & custom authority	40-65%	varies	low	The community's legitimacy and unity
Court challenge	25-50%	years	low-moderate	Rights upheld; a project halted; delay
National policy (e.g. deep-sea mining)	25-50%	years	low	A moratorium or protective stance
International law & institutions	20-45%	years	low	Authoritative standards; leverage; not a direct stop
Media & the world's attention	35-60%	ongoing	low	Pressure and solidarity that strengthen every lever
All steps (a project on customary land)	45-70%	months-years	low-moderate	Stopped at the gate or by the courts
All steps (a threat too big for one community)	20-45%	years	low	Authoritative standards, leverage, and delay, not a clean stop

Key insight: every step together beats any single one, and Vanuatu's real strengths are distinctive — **customary land rights and consent, the authority of the chiefs, the courts**, and, for the largest threats, **leadership in international law and regional solidarity**. Its constraints are specific: customary land can be **alienated by lease**; international wins are **authoritative but not binding**; and against a global threat like climate change, even a landmark is a **step, not a stop**.

A note on cost: knowing and asserting customary rights, uniting the chiefs and community, and documenting the harm cost little but knowledge and organisation, and even the ICJ campaign was carried by students and a small government with global allies. The expenditure that most changes outcomes is not money; it is the knowledge of customary rights and the unity of the custom owners and chiefs — and, for the great threats, the persistence to carry a claim to the world, as Vanuatu carried the climate case for years. The endurance the climate campaign required — six years from a classroom idea to a ruling at The Hague — is itself a lesson for any ni-Vanuatu fight: the great wins here have come not from a single dramatic act but from patient, sustained work carried by people who did not give up when progress was slow. A community should steel itself for a long effort, build the structures and the alliances that can sustain one, and take heart from the fact that a group of students with almost no resources, by refusing to stop, moved the highest court on Earth.

Effectiveness Visualization

SUCCESS PROBABILITY (a project stopped, or a great threat confronted)

A PROJECT ON CUSTOMARY LAND -- united custom owners, consent or lease in question:

All steps combined:	45-70%
Withholding consent:	40-65%
Chiefs + custom authority:	40-65%
Challenging the lease:	30-55%
Single step:	5-65%

A THREAT TOO BIG FOR ONE COMMUNITY -- climate, deep-sea mining, far-off emitters:

All steps combined:	20-45%
International law + solidarity:	authoritative standards + leverage
Delay / protective standard:	more achievable than a clean stop
Single step:	5-45%

How to read this honestly. The levers that most change outcomes in Vanuatu are, for a local project, **the custom owners' consent and the chiefs' authority**, and, for a great threat, **leadership in international law and regional solidarity** — amplified by the courts and the world's attention. The custom foundation gives a real ceiling for a project on the ground: a united community that withholds consent can often stop it at the gate. But the international level shows the honest floor for the largest threats: even a unanimous world-court opinion is authoritative, not coercive, and the seas rise on. Most ni-Vanuatu fights sit on one level or the other, and the honest lesson is that the customary rights are strong and often decisive close to home, while against the global threats the win is authoritative standards and leverage, not a clean stop. Read the table, then, as a guide to matching effort to scale: a united community with a strong customary claim and a questionable lease is in the high band and can aim to stop the project on its land outright, while a community facing a global threat should aim realistically at building the standards, the leverage, and the solidarity that shift the odds over time, rather than expecting a single ruling to turn back the sea. Knowing which band you are in keeps a campaign both ambitious where it can be and honest where it must be.

Step Importance Ranking (When All Combined)

1. **The custom owners' consent and the chiefs' authority** — Vanuatu's most decisive lever for a project on the ground; a united community that controls its land can block a project at the gate.
2. **Leadership in international law and regional solidarity** — for a threat too big for one community, the reach into the world's institutions Vanuatu has mastered, acting with the Pacific.
3. **Challenging the lease and the courts** — overturning an unsound lease or a flawed consent, and defending rights in court, including where custom is weighed.
4. **Documentation and the customary right** — the proof of who truly owns, whether they consented, and what the harm is, that anchors every claim.
5. **Media and the world's attention** — the coverage and solidarity, national to global, that strengthen every lever, as they carried the climate case.

What Ni-Vanuatu Campaigns Actually Show

A few patterns recur. **Consent is a real gate** — customary land cannot simply be taken. **The chiefs matter** — their authority anchors the community. **Leases are the weak point** — an unsound lease can be challenged and land recovered. **A small nation can move the world** — Vanuatu made the world's court speak on climate. **But the great threats resist a clean stop** — a legal opinion is authoritative, not coercive. The through-line: **know and hold your customary rights; unite the chiefs and the community; withhold consent and challenge the lease; and, for the largest threats, reach into the courts and the world's institutions — because in Vanuatu the land is yours to defend, and even the world's court can be moved.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project or the threat — and the leverage the community holds, which in Vanuatu is often the consent and the lease, or, for a great threat, the reach into international law. Vague opposition goes nowhere; a fight aimed at "the lease granted over our customary land without the true owners' consent" or "the deep-sea mining that would tear our ocean floor" is a campaign. Answer five questions.

The Five Core Questions

1. Who are the true custom owners, and did they consent? This is the first ni-Vanuatu question, because the land belongs to the custom owners and a project needs their **genuine consent**. Establish who truly owns the ground and whether they freely agreed — because a project without true consent stands on sand. This is the single most powerful fact in a ni-Vanuatu land fight, and it is worth stating plainly to the community at the outset: the burden is not on you to buy

back land already sold, but on the project to show that the true owners genuinely agreed — and if they did not, the project has no secure footing. A community that understands this enters the fight not as a supplicant asking to be spared but as the rightful owner of ground that cannot lawfully be taken without its word, which is a far stronger position from which to negotiate or litigate.

2. Is the lease sound? Was the **lease** — the usual route by which customary land is opened to a project — granted properly, by the true owners, with genuine consent and fair terms? An unsound lease is a project's weak point.

3. What does it do to the land, the reef, and the community? What **harm** does the project or threat cause — to the land, the ocean and reef, the water, the kastom, the future — and what does the community stand to lose?

4. Will the chiefs and the community unite behind it? Can the **chiefs, the custom owners, and the community** be united, so the project meets a community that speaks as one, backed by custom authority?

5. For a great threat, who decides beyond the island? If the threat is too big for one community — climate, deep-sea mining — which **national policies, courts, and international institutions**, and which **regional allies**, can be reached, as Vanuatu reached the ICJ?

A Worked Example

Suppose a company obtains a long lease over customary land and plans a development, but the true custom owners say they never truly agreed.

Working the five questions: who are the **true custom owners**, and did they **consent**? Is the **lease** sound — granted by the right owners, on fair terms? What **harm** does the development do to the land and reef? Will the **chiefs and community** unite? And the deciders are the government and the company, with the custom owners, the chiefs, the courts, and the world as the pressure points.

Within a season you have moved from "a company is taking our land" to a target list: establish the true owners and the lack of consent; challenge the lease; unite the chiefs and community; and reach the courts, and the world if need be. That is a campaign, not a complaint — and it draws on both levels Vanuatu has mastered. Notice what the exercise did: it turned a frightening sense that a company was simply taking the land into a short list of concrete, winnable tasks — prove the true ownership, establish the missing consent, challenge the lease, unite the chiefs — each tied to a specific lever, and none of them dependent on the community having wealth or power. That reframing, from helplessness to a plan built on the community's strongest asset, its customary ownership, is the difference the five questions make in Vanuatu.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A court, the chiefs, a journalist, and the world all move on evidence, not indignation — and even the climate case that moved the ICJ was built on years of careful legal and scientific documentation. Build your file in three layers.

Layer 1: The Ownership, the Lease, and the Consent

Get the documents and the custom knowledge the decision rests on. Establish **who the true custom owners are** — through custom, genealogy, the chiefs, and the land record — because ownership is the foundation of every claim. Obtain the **lease and the consent record**, and scrutinise them: was the lease granted by the true owners, with **genuine, informed consent**, on fair terms, or was consent absent, coerced, or given by the wrong people? Obtain the **permits and approvals**. The gap between what the lease claims — proper consent, fair terms — and what the custom owners say is where many ni-Vanuatu cases are won. Establishing the true custom ownership is the single most important piece of documentation, and it is different from the paperwork many legal systems rely on, because it lives partly in custom, genealogy, and the knowledge of the chiefs rather than only in a registry. Take the time to record it thoroughly — the lines of descent, the boundaries known to the elders, the recognition of the neighbouring chiefs — because a clear, well-supported account of who truly owns the land is what exposes a false consent and defeats a lease granted by the wrong hands.

Layer 2: The Harm to the Land, the Reef, and the Kastom

Document the reality the paper understates, and put the **land, the ocean, and the kastom** at the centre. Record the

harm — to the land, the reef and fishing, the water, the sacred and custom sites, the future — that the project or threat would cause. Document what the community **stands to lose**: its livelihood, its heritage, its ground. Give particular attention to the reef and the sea, because in Vanuatu the ocean is not a separate matter from the land but part of the same inheritance, and a project that harms the reef strikes at the fishing, the food, and the culture together. Documenting the harm to the marine environment — the reef a community has fished for generations, the waters its custom governs — is as important as documenting the harm to the land itself, and it connects a local fight to the wider ni-Vanuatu and Pacific concern for the ocean that runs through the nation's international leadership. Photograph and date it. Record **testimony** from the custom owners, the chiefs, and those who know the land and the sea. This is the human and custom case that unites the community and moves the courts and the world.

Layer 3: The Consent, the Harm, and the Right

Finally, document the case. Was there **no genuine consent** from the true custom owners? Is the **lease unsound** — wrong owners, coerced or absent consent, unfair terms? Is the **harm** to land, reef, and kastom real and grave? For a great threat, does it breach the **standards international law now affirms**, as the ICJ affirmed states' climate duties? Each is a separate ground — for the courts, the custom authorities, the international appeal, and the public campaign — and together they make a case that is hard to wave away. This is the layer that most often decides ni-Vanuatu fights, because here a project sold as consented and lawful is revealed to lack true consent, to rest on an unsound lease, and to harm the land and reef — exactly the kind of case the custom owners and the courts can uphold. The strength of assembling all three grounds together — the missing consent, the unsound lease, and the harm — is that they serve different deciders and reinforce one another: the missing consent and the unsound lease are the legal core the courts can act on, while the harm to land and reef is what unites the community and moves the public and the chiefs. A community that documents only the harm may find its moral case strong but its legal footing weak; one that documents all three arms every front at once, from the custom process to the courtroom to the press, from a single well-kept file.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records and custom knowledge that decide ni-Vanuatu cases, and where to obtain them. You will not need every item; you will need the few that establish the ownership, the lack of consent, and the harm.

The Ownership, the Lease, and the Paper Trail

- **The custom ownership** — who truly owns the land, established through custom, genealogy, the chiefs, and the land record.
- **The lease** — its terms, who granted it, and whether the true owners consented, the usual weak point.
- **The consent record** — whether genuine, informed consent was given, by the right people, or was absent or coerced.
- **The permits and approvals** — how the project was authorised.
- **The company** — the operator, foreign or domestic, and its obligations.

How to Get Them

Custom ownership is established through the **chiefs, the custom process, and the land record**; the lease and consent records through the government's land office and what access allows; the permits through the authorities. Lean on **allies**: the **chiefs and the National Council of Chiefs**, who hold custom knowledge; Vanuatu's public-interest lawyers and land-rights advocates; civil society and the churches; and, for a great threat, the regional and international networks — the students, lawyers, and Pacific bodies who carried the climate case. Move as the fight allows: establishing the true ownership and the lack of consent early is what lets a lease be challenged before a project is built, as reaching the world early built the climate campaign. Timing is a real strategic variable in Vanuatu, on both levels: a lease is far easier to challenge before a project has been built and money spent than after, when the facts on the ground and the interests invested weigh against undoing it, and a great cause gathers momentum when it is raised early and carried steadily rather than sprung late. The climate campaign's patient six-year arc, begun long before any ruling was in sight, is the model — start early, document thoroughly, and build the case and the coalition step by step while the options are still open.

The Ground and Custom Evidence

- **The harm** — to the land, the reef and fishing, the water, the sacred sites, dated and photographed.
- **The custom knowledge** — the ownership, the boundaries, the significance of the place, from the chiefs and elders.
- **What the community loses** — the livelihood, the heritage, the future.

- **The lease and consent facts** — who agreed, who did not, on what terms.
- **Testimony** — from custom owners, chiefs, and those who know the land and sea.

Organise It So It Persuades

Keep a **master timeline** of the ownership, the lease, the consent, the harm, and every step of the fight — the spine of any claim. Keep a **document and custom-knowledge index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a custom owner, a chief, a lawyer, a journalist, a judge, and an international ally all see the same clear picture fast, and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the company or the government pushes back. In a country where customary ownership and consent are the foundation, the community with the better-kept record — above all the clearest proof of true ownership and the absence of genuine consent — is very often the one that holds its ground.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO UNITE THE COMMUNITY, THE CUSTOM OWNERS, AND THE CHIEFS

Evidence and rights do not win on their own. A united community does — and in Vanuatu, the authority of the custom owners and the chiefs is the anchor of any land fight, while the climate campaign showed that a united effort, from a village to a nation, can reach the world. A ni-Vanuatu campaign's strength is that unity: the custom owners, the chiefs, the community, and, for great threats, the nation and the region as one.

Phase 1: The Core, the Custom Owners, and the Chiefs

Start with a committed core built around the **true custom owners** and the **chiefs**, because their ownership and authority are the foundation of the fight. Assign roles: custom and chiefly liaison, documentation, legal liaison, media, and, for a great threat, international and regional liaison. Agree on the goal — the project stopped, the lease overturned, the land held, or the threat confronted — and on what the custom owners and community will and will not accept. Ensure the custom owners speak with one voice, because a project's first tactic is to find or manufacture a divided ownership. This is the most common way a strong customary claim is defeated, and guarding against it is the first duty of the core group: a company or a middleman, unable to buy land that is not for sale, will instead look for a disaffected relative, a rival lineage, or an ambiguous boundary, and use it to produce a consent from someone who can be presented as an owner. A community that settles its own ownership questions clearly and early, with the chiefs, and that presents a single united account of who the true owners are, removes the wedge before it can be driven in.

Phase 2: The Broad Coalition

Then widen deliberately. Bring in the **wider community and the custom owners** across the affected land, so they speak as one; the **chiefs and the National Council of Chiefs**, whose authority the state and companies must respect; the **churches**, which carry deep community legitimacy; Vanuatu's **land-rights advocates and lawyers**; and, for a great threat, the **regional Pacific bodies, the international networks, and the youth and student movements** that carried the climate case. Reach the **national, regional, and international press**. The climate campaign drew its power from exactly this breadth — students, a government, chiefs, churches, Pacific neighbours, and global allies as one — which is precisely the spread a winning ni-Vanuatu campaign, at any scale, needs. The climate campaign is instructive precisely because it united scales that are usually kept apart: a village's lived experience of the encroaching sea, a nation's diplomatic weight, a region's collective voice, and a global network of lawyers, scientists, and young activists, all bound together by a single clear claim. A ni-Vanuatu campaign, even one over a single lease, benefits from thinking the same way — grounding itself in the custom owners and chiefs, but drawing in the lawyers, the churches, the national attention, and, where the stakes warrant, the region and the world.

A worked coalition example. Facing a lease over customary land, the true custom owners and the chiefs form the base and the authority; the community unites behind them; the lawyers and advocates carry the legal challenge; the churches and civil society lend legitimacy; and the press raises the pressure. For a great threat, the circle widens to the nation, the Pacific, and the world. No single group could carry it; together they cover the custom, the law, and the world — the model Vanuatu has shown at every scale.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat — and a land case or an international campaign runs for years; the climate case took the better part of a decade. Meet on a rhythm. Give people concrete tasks. Mark small wins — the true ownership established, a chiefly declaration, a lease challenged, a wave of coverage, an international ally won. Keep the custom owners and chiefs at the centre and the community united, and guard against the **division** — the offer to some owners, the manufactured rival claim — that a company or the government will use to split the ownership and break the fight. The defence against division is not secrecy but transparency and inclusion: keep every custom owner informed, make decisions openly through the chiefs and the custom process, and ensure that no settlement is entertained that would benefit some owners at the expense of others. A community whose members trust that they are being dealt with fairly, and that any agreement will serve the whole ownership, is far harder to split than one where rumours and private offers are allowed to breed suspicion.

Phase 4: Showing Strength and Authority

Custom authority and community unity must be seen. Let the **chiefs and the custom owners speak**, so the government, the company, the courts, and the world hear the united voice of those whose land it is, backed by kastom. Hold **chiefly declarations and community assertions** of ownership and refusal. For a great threat, show the nation and the region united, as Vanuatu showed the world a Pacific speaking as one. Regional unity is a distinctive source of strength in this part of the world, because the Pacific nations, for all their differences, have a long practice of acting together and speaking with a collective voice, and a threat framed as a shared Pacific concern rather than one country's grievance carries far more weight in international forums. A ni-Vanuatu campaign facing a great threat should reach deliberately for that regional solidarity, joining its cause to its neighbours' and to the wider community of small island and vulnerable states, as the climate campaign wove a single Pacific voice from many islands. The point is not spectacle; it is to demonstrate — to the government, the company, the courts, and the world — that the custom owners and the community stand united and will not consent to the loss of their land or their future, as Vanuatu stood united to carry its cause to the highest court.

STEP 4: LEGAL CHALLENGES — CUSTOMARY RIGHTS, THE COURTS, AND INTERNATIONAL LAW

Vanuatu's law rests customary land rights in the custom owners, and its courts — including those that weigh custom — can defend them; and for the largest threats, Vanuatu has shown that international law is a lever a small nation can reach. You do not need to win everything to win: overturning an unsound lease, upholding the custom owners' rights, or securing an authoritative international standard can each be a real victory. Engage lawyers, the chiefs, and, for great threats, international allies early — but understand the tools.

Customary Rights and Consent

The first and most distinctive lever is **customary land rights and consent**. In Vanuatu the land belongs to the custom owners and generally cannot be alienated without their genuine consent, so a project that lacks true consent, or rests on a lease granted by the wrong people or without informed agreement, can be **challenged and stopped**. Establish the true ownership and the absence of consent, and assert the custom owners' rights through the custom process and the courts. This is the foundation of most local land fights.

Challenging the Lease and the Courts

The second lever is the **lease and the courts**. Because leasing is the usual route by which customary land is opened to a project, an **unsound lease** — wrong owners, coerced or absent consent, unfair or improper terms — is a project's weak point, and can be challenged in the courts, including where custom is weighed, to **overturn the lease and recover the land**. There is real precedent and real hope in this, because the courts in Vanuatu have grappled seriously with disputes over whether leases were granted by the right people and with genuine consent, and a lease shown to have been obtained improperly does not stand merely because it was registered. The task for a community is evidential — to show clearly that the true owners did not agree, or that the person who signed had no right to — and where that can be shown, the registration of the lease is not the end of the matter but the thing to be undone. Use the courts too to defend the environment and enforce the law where a project harms the land and reef.

International Law and the Great Threats

The third lever, and Vanuatu's distinctive gift to the world, is **international law**. For a threat too big for one community — climate change, deep-sea mining — Vanuatu has shown that a small nation can reach the **world's institutions**: the ICJ, whose 2025 opinion affirmed states' binding duties on climate; the law of the sea; the climate framework. These standards are **authoritative and can be wielded** in national and regional courts, in diplomacy, and in the court of world opinion — a lever no single community could have created alone. A ni-Vanuatu community should therefore see the international standards its own nation helped create as part of its toolkit, not as remote diplomacy: when a government or a company proposes a project that would add to climate harm or tear the ocean floor, the community can point to the duties the world's court has now affirmed and to its own nation's leadership, framing its local resistance as consistent with the standards its country fought for on the world stage. That alignment of the local and the global is a rhetorical and legal strength particular to Vanuatu. The way to use these standards is concrete rather than abstract: an authoritative statement that states must act to prevent climate harm, and must regulate the companies within their control, becomes a tool that lawyers can cite in national and regional courts, that diplomats can wield in negotiations, and that campaigners can hold up to measure a government's conduct against its own obligations. Vanuatu created the standard; the work now, for communities and advocates everywhere, is to wield it — and a ni-Vanuatu community facing a great threat can invoke the very opinion its nation helped bring into being.

Where to Turn and With Whom

Custom claims go through the **chiefs and the custom process**; lease and rights challenges through the **courts**, including those weighing custom; environmental enforcement through the courts and authorities; and the great threats through **national policy, regional bodies, and international institutions**. Get help early: Vanuatu's land-rights lawyers and advocates, the chiefs, and, for great threats, the Pacific and international networks that carried the climate case know the law, the custom, and the routes. Help engaged early — before a lease hardens into a built project, or while a cause can still be carried to the world — is worth far more than help sought after, and in Vanuatu the strongest strategy marries the **customary rights and consent** below to the **courts** and, for the largest threats, the **international institutions** above.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a chief, a court, a government, a journalist, and an international audience in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a long lease was granted over customary land by people who were not the true owners, without the genuine consent of those whose ancestral ground it is, for a project that would destroy the reef the community fishes. That one fact becomes:

- **A custom argument:** the true owners never consented, and the chiefs and custom do not recognise the lease — the case before the custom authorities.
- **A legal argument:** the lease is unsound and can be overturned; the custom owners' rights were breached — the case before the courts.
- **An environmental argument:** the project would destroy the reef and the fishing — the harm the law and the community reject.
- **A public argument:** our land was taken and our reef would be destroyed, and we never agreed — the case that unites the nation.
- **An indigenous-rights argument:** the inseparability of our land, our ocean, and our culture was ignored — the case that resonates regionally and globally.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Vanuatu the arguments that most often decide things are the **consent-and-ownership** one, because it is the foundation, and the **harm-to-land-and-reef** one, because it unites the community. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the ownership record and a claim made to a court can be proven by the consent facts; consistency across audiences is itself persuasive.

Match the Argument to the Audience

The chiefs and custom authorities want the ownership and consent framed in custom — who truly owns, who did and

did not agree, what kastom requires.

The courts want the unsound lease or the breach of rights framed against the law, with the ownership and consent records that prove it.

The government responds to the lack of true consent, the flawed lease, and the harm, and to the authority of the chiefs.

Journalists need a specific, vivid story with a hook: a community's ancestral land leased out from under it, or a small nation moving the world's court.

The public and the region need the argument simple and true: our land and our future were taken without our consent, and we will defend them.

The international audience responds to indigenous rights, the inseparability of land and ocean and culture, and the standards international law now affirms.

STEP 5: MEDIA STRATEGY — HOW COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the cost of taking a community's land, brings in allies, and — as Vanuatu showed on climate — can help a small nation move the world. The climate campaign succeeded in part because it captured the world's imagination: a nation facing the loss of its very land, carrying its cause to the highest court.

Build the Story

Reporters and the public need specifics: a named place, a documented wrong, and a human stake. "A community opposes a project" is not a story; "a community's ancestral land was leased out from under it, without the true owners' consent, for a development that would destroy the reef it has fished for generations" is — and, at the largest scale, "a nation facing the sea's rise made the world's court affirm that states must act on climate" is. Lead with your strongest verified facts — the ownership, the missing consent, the harm — and offer a human voice: a custom owner, a chief, a young ni-Vanuatu. In Vanuatu the story of a people defending their ancestral land, and of a small nation leading the world, is uniquely powerful.

Reach the Right Outlets

Work outward in rings. **Community and custom voices** first. Then the **national outlets** — because a community's land and a nation's future are national causes. Then, crucially, the **regional and international ring** — the Pacific bodies and the world's press — because a small nation's fight, especially against a great threat, draws a global attention Vanuatu has shown it can command. Feed each ring what it needs, and let coverage in one pull in the next. The **regional and international ring is especially decisive** in Vanuatu for the largest threats, because the world's attention and solidarity are levers a small nation can wield.

Sustain It, and Keep It True

A single article changes little; a drumbeat changes decisions — and a land case or an international campaign runs for years. Plan a sequence — the ownership, the missing consent, the harm, the challenge, the ruling — so there is always a next hook, and build your own clear record so the story reaches the nation and the world and endures. Keep messaging disciplined, accurate, and consistent; a claim of ownership and consent especially demands precision, because one contested fact can be used to divide the owners or discredit the case. Verified, specific, land-and-consent-centred, and — for great threats — carried to the world, that is the coverage that shifts outcomes here, and that helped a small nation move the highest court.

EMAILS & LETTERS

Written communications are how you assert, object, create a record, and reach the bodies that can act — the chiefs, the government, the courts, and, for great threats, the world's institutions. Each does double duty: it asserts something and it documents that you asserted it. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the ownership, the consent, and the harm.

8A. Assertion of Custom Ownership and Refusal of Consent

To: the government (lands) / the company **Subject:** Custom ownership and refusal of consent, [land/project]

We, the true custom owners of [land], with our chiefs, assert our **customary ownership** of this land and state that we have **not consented** to [project/lease]. Under the Constitution, this land belongs to us as custom owners, and no project may proceed on it without our genuine consent. We withhold that consent and require that [project/lease] not proceed.

8B. Challenge to a Lease

To: the government (lands) / the courts **Subject:** Challenge to the lease over [land]

We, the true custom owners of [land], challenge the lease [reference] granted over our customary land. The lease was **granted without our genuine consent / by persons who are not the true owners / on improper terms**. We request that it be **reviewed and set aside**, and our land restored, and we attach our evidence of ownership and the absence of consent.

8C. Request to the Chiefs / National Council of Chiefs

To: the chiefs / the Malvatumauri National Council of Chiefs **Subject:** Request for custom authority on [land/project]

We, the custom owners and community of [place], ask the chiefs to affirm our **customary ownership** and to speak with their authority against [project/lease], to which the true owners did not consent. Your custom authority would greatly strengthen our stand before the government, the courts, and the nation.

8D. Environmental / Reef-Harm Objection

To: the environmental authority / the government **Subject:** Harm to land and reef from [project]

We, the community of [place], object to [project], which would [destroy the reef we fish / harm our land and water / damage our sacred sites], documented and attached. We call for the protection of our environment and the refusal or halting of the project, in keeping with the law and our rights as custom owners.

8E. Instructing a Lawyer / Land-Rights Advocate

To: a land-rights lawyer / advocate **Subject:** [Land/project] — ownership, consent, and the lease

We are defending [land] from [project/lease]. We attach our evidence of custom ownership, the lease and consent records, and our evidence of harm, and seek advice on **asserting our customary rights, challenging the lease, and defending the environment**. Please advise on the strongest ground and the deadlines.

8F. Appeal to Regional / International Allies (Great Threats)

To: [Pacific body / international network / youth movement] **Subject:** [Threat] — a call for regional and international solidarity

We write regarding [climate / deep-sea mining / a threat too big for one community]. As Vanuatu carried the climate cause to the world's court, we ask for your solidarity and support in confronting [threat] through [regional bodies / international law / the world's attention]. We attach our case and can connect you with our community and our leaders.

8G. Email to a Reporter (National or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the land / the nation]

I follow your coverage of [beat]. We have something worth telling, with a clear hook: [documents and custom knowledge] show [quantified finding — e.g. "a community's ancestral land was leased out without the true owners' consent for a project that would destroy its reef"]. It speaks to the ni-Vanuatu fight to defend land and future, as Vanuatu defended it at the world's court. I can share the file and connect you with a custom owner and a chief. Could we talk this week?

8H. Public / Community Statement

To: the public and the authorities **Subject:** We defend [land/future]

We, the custom owners and community of [place], with our chiefs, declare that we will defend [our land / our reef / our future]. [Project/threat] would [take our land without our consent / destroy our reef / endanger our future], and we do not consent. As Vanuatu carried its cause to the world's court, we will use our custom rights, our chiefs, the courts, and the world's attention to defend what is ours, and we will not relent.

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — the record of an assertion of ownership, a refusal of consent, or a challenge to a lease is itself evidence, and exactly what the chiefs, the courts, the government, and the world will heed. Keep them factual, specific, and grounded in the ownership, the consent, and the harm; attach your evidence; and route them, where you can, through the chiefs, the custom owners, your lawyers, civil society, and — for great threats — the regional and international networks. The reply, or the ruling, becomes part of your record, and in Vanuatu that record feeds the levers that matter most: the customary rights and consent below, and, for the largest threats, the international institutions above.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still defend your land — and add your voice to the great fights. In rough order of impact for the effort:

- 1. Establish the true ownership and withhold consent.** In Vanuatu, the land is yours as custom owners, and a project needs your consent. Establish who truly owns and refuse consent (Step 1, 8A).
- 2. Bring in the chiefs.** Ask the chiefs and the National Council of Chiefs to affirm your ownership and stand with you (8C) — the anchor of custom authority.
- 3. Challenge the lease.** If a lease was granted without true consent or by the wrong owners, challenge it (8B).
- 4. Document the harm.** Record the harm to land, reef, and kastom, and what the community loses (Step 2).
- 5. Reach a land-rights lawyer.** A lawyer or advocate can carry the lease challenge and defend your rights (8E).
- 6. For a great threat, reach the region and the world.** Add your voice to the regional and international fights — climate, deep-sea mining (8F).
- 7. Reach the press.** A vivid land-and-consent story (8G), national and, for great threats, global.

Do only the first three and you will have asserted your ownership, refused consent, and brought in the chiefs — the exact foundation of a ni-Vanuatu land defence. Then come back and read the rest. Even the shortest version has a spine: establish ownership, refuse consent, bring in the chiefs.

WHEN THE SYSTEM IS TILTED

Vanuatu's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that work.

Where the Tilt Shows

The tilt here is real, if different from many countries. Customary land is protected, but it can be **alienated through long leases**, and a company or an official can obtain a lease by dealing with the wrong "owners," by manufacturing a rival claim, or by securing a consent that was not genuine — so the strong customary protection can be undermined in practice. A small nation has **limited resources** to police every lease and enforce every right. And against the **great threats** — the climate driven by far-off emitters, the pressure for deep-sea mining — even a united nation's power is moral, legal, and diplomatic, not coercive. Where these tilts bite, a campaign that assumes customary rights are self-enforcing, or that a legal opinion will stop the seas, will be disappointed.

What Still Works — And Some Is Distinctive

The decisive point is that even against these tilts, real and distinctive levers remain.

Customary ownership still holds. The land belongs to the custom owners, and a project without their genuine consent stands on sand.

The chiefs still carry authority. The custom authority of the chiefs is a legitimacy the state and companies must reckon with.

An unsound lease can still be overturned. The very leases that undermine customary land can be challenged and set aside when consent was absent or false.

A small nation can still move the world. Vanuatu has shown that leadership in international law can create authoritative standards where no single community could.

The region and the world still respond. Regional solidarity and global attention are levers a small nation can wield, as Vanuatu wielded them at the ICJ.

The Honest Frame

So the honest frame for Vanuatu is realistic and, in its way, hopeful: customary rights can be undermined by lease and the great threats resist a clean stop, but the custom foundation, the chiefs, the courts, and the reach into international law give a community and a nation real and distinctive power. So diagnose your fight honestly: establish the **true ownership** and **refuse or challenge the consent**; unite the **chiefs and community**; **challenge the unsound lease** in the courts; and, for a threat too big for one community, reach the **national policy, the region, and the world's institutions**, as Vanuatu reached them — while understanding that against the greatest threats the win is authoritative standards and leverage, not a clean stop.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Vanuatu, like any country, has real concerns about how leases are granted, how consent is obtained, and how connected interests can profit from customary land, so this section matters. When a lease is granted not because the true owners consented but because someone was paid, or a false "owner" was found, or an official profited, your strategy includes exposing that.

How to Tell

Look for the signatures of capture. A **lease granted despite the true owners' refusal**; a **consent obtained from the wrong people** or by pressure; an **official or a middleman who profits** from the deal; a **rival "ownership" claim** that appears conveniently; and **terms that enrich the few** while the community loses its land. Trace the lease and the money: who granted it, who signed as "owner," who profited, whether the true custom owners ever genuinely agreed. In Vanuatu, a lease over customary land that the true owners reject is often not a mistake but an arrangement that serves the connected — exactly the kind of dealing that undermines the customary protection.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where capture reaches. **Officials, middlemen, and false "owners"** can be captured by the money in a lease. But some forces are far harder to capture, and they are your targets: the **chiefs and the custom authority**, who know the true ownership; the **courts**, including those that weigh custom; **civil society and the churches**; the **land-rights advocates**; and the **community and the world's attention**. Capture thrives on confusion about ownership and on the community's silence; your task is to establish the true ownership clearly, unite the real custom owners, and bring the dealing into the light — to the chiefs, the courts, and the public.

What to Do

Do not assume a corrupt lease cannot be undone. Instead, **document the true ownership and the false consent precisely** — who really owns, who signed, who profited, whether the true owners ever agreed — and take it to the forces that can act: the **chiefs**, to affirm the true ownership; the **courts**, to overturn the lease; the **land-rights advocates**; and the **public**. Pair the exposure with the assertion of the true custom owners' rights, so the impropriety and the rightful claim surface together. In Vanuatu, exposing how a lease was obtained without true consent, and reasserting the real custom ownership, is often the way to recover land that was taken — restoring the customary protection the dealing tried

to undermine. There is a broader significance to winning such cases that a community should hold onto: every corrupt lease exposed and overturned not only recovers one piece of land but strengthens the customary system itself, reminding officials, companies, and middlemen that a false consent can be undone and that the true owners will be heard. A community that fights and wins is defending not only its own ground but the principle that protects every community's ground, and in that sense a single well-fought case contributes to the security of customary land across the country.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight — which in Vanuatu turns on the ownership and consent below and, for great threats, the international reach above.

Early (Weeks 0-16): Ownership, Consent, and the Chiefs

Pin down the project or threat and the community's rights (Step 1); establish the **true ownership** and document the **lack of consent** and the harm (Step 2). Unite the **custom owners and the chiefs** (Step 3). Move at once on what is decisive: **assert ownership and refuse consent** (8A); **bring in the chiefs** (8C); and, if a lease exists, **prepare to challenge it** (8B). Reach a **land-rights lawyer** early (8E), and, for a great threat, the **regional and international networks** (8F). This phase lays the foundation, and in Vanuatu the true ownership and the united chiefs established here are what win.

Middle (Months 4-24): Challenge and Build

Sustain the community's unity (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate as the facts warrant — the **lease challenge** and the **court case** (Step 4), the **environmental objection** (8D), and, for a great threat, the **regional and international campaign**. Build the media drumbeat from community to national to global (Step 5). Each front feeds the others. Do the time-critical things first — asserting ownership and challenging the lease before a project is built — because those chances do not return.

Later (Months 12-48+): The Ruling, and Vigilance

Pursue what is achievable — the **lease overturned, the land held, the project stopped**, or, for a great threat, the **authoritative standard and the leverage** it creates. And stay vigilant, because a company may seek a new lease and a great threat persists whatever a court says. Judge success honestly. Sometimes it is a project stopped and land recovered on the strength of custom rights. Sometimes, against a great threat, it is an authoritative standard and a lever, not a clean stop. Both are victories worth the fight.

The Shape of a Campaign

WEEKS 0-16	Establish true ownership Refuse consent Unite the chiefs Document harm Prepare lease challenge
MONTHS 4-24	Challenge the lease Court case Environmental objection Regional/international campaign Media
MONTHS 12-48+	Lease overturned / land held / standard set Guard against a new lease; persist against great threats

FINAL ASSESSMENT

Vanuatu gives communities a genuinely powerful — and distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. **Customary land rights** rest the ground in the custom owners, so a project needs genuine consent — a defence many communities elsewhere lack. **The authority of the chiefs** anchors the community with a legitimacy the state must respect. **An unsound lease can be overturned**, recovering land that was taken. And, for the threats too big for one community, **Vanuatu has shown that a small nation can lead the world** — moving the highest court to affirm states' climate duties, and pressing for the ocean's protection. These are the tools that let a people hold their ancestral land and a nation move the world. They are, notably, tools that owe nothing to wealth or size: the customary ownership belongs to every ni-Vanuatu community as of right, the authority of the chiefs is rooted in the people themselves, and the reach into international law was opened not by a great power but by students and a small island state — which is why this two-level defence is available, in principle, to any community and any small nation willing to use it.

The limits are just as real, and this guide names them. Customary land can be **alienated by lease**; a small nation has **limited means** to enforce every right; and against the **great threats**, even a historic legal win is **authoritative, not**

coercive — the seas rise on. No guide should pretend these away; in Vanuatu, the art is to hold the customary ground where you can, and, where the threat is global, to build the standards and the leverage that are the real, if partial, prize.

So the realistic promise is this: **establish the true ownership and withhold or challenge the consent; unite the chiefs and the community; challenge the unsound lease in the courts; and, for the greatest threats, reach the region and the world's institutions — running all of it together.** Do that, and against a project on customary land, with united owners and chiefs, you can refuse consent, overturn the lease, and hold your ground; against a threat too big for one island, you can, as Vanuatu did, help move the world and build the standards that will matter for decades. Do it as Vanuatu did — a community and a nation that knew the strength of their custom rights and the reach of the law, held their land, and carried their cause to the highest court on Earth.

A last word on the two levels. Vanuatu's lesson is that defence works from below and from above at once — that the custom owners and the chiefs can hold the ground, and that a small nation, acting with its region and grounded in the inseparability of land, ocean, and culture, can move the world's institutions to confront the threats no single community can stop. The powerful count on your believing that a small people cannot resist a company's lease or a warming world. Their advantage is the lease that alienates and the emitters that are far away. Yours is a Constitution that rests the land in the custom owners, chiefs whose authority endures, courts that can overturn a false lease, and the proven fact that Vanuatu made the world's court speak. Play to that. Keep the record and the true ownership, keep the custom owners and chiefs united, challenge the false lease, and, for the great threats, carry your cause to the world as Vanuatu carried it — and treat every assertion of ownership, every chiefly declaration, every overturned lease, and every standard won as a stone in a seawall no company or rising tide can easily breach.

The tools are here, and Vanuatu itself proved them, at every scale: custom owners and chiefs who hold their ancestral land against a false lease, and a nation of a few hundred thousand that carried the fate of the Earth's climate to the highest court and made it speak. What decides the outcome, in the end, is knowledge of your rights, the unity of the custom owners and chiefs, and the reach — into the courts and, for the great threats, into the world — that Vanuatu has shown a small people can command. Begin today, begin with your true ownership and your chiefs, and build from there. Communities and a nation before you have held their land and moved the world — a false lease overturned, ancestral ground held, the world's court made to speak for a warming planet. What Vanuatu won can be won again. So can yours. A people who held their ground against a false lease, and a nation of a few hundred thousand that carried the fate of a warming world to the highest court and made it speak, have shown what is possible from below and from above; the customary rights, the chiefs, the courts, and the reach into the world's institutions are the method, and the proof that it works, drawn from a small nation that refused to accept that it could do nothing, is now yours to take up and use.